

25STCV15166 25STCV15166

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Case Number: 25STCV15166 Hearing Date: September 17, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

KEYSHAWN JOHNSON,

Plaintiff,

vs.

CHRISTOPHER ELLISON,

Defendant.

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CASE NO.: 25STCV15166

[TENTATIVE] ORDER DENYING MOTION FOR JUDGMENT
ON THE PLEADINGS

Dept. 506

8:30 a.m.

September 17, 2026

On

January 30, 2026, Plaintiff Keyshawn Johnson filed a first amended complaint ("FAC") against Defendant Christopher Ellison. The FAC alleges (1) breach of oral contract; (2) quantum meruit; (3) breach of the duty of good faith and fair dealing; (4) violation of California's Unfair Competition Law ("UCL"); (5) negligence; and (6) declaratory judgment.

On

August 20, 2026, Defendant (proceeding in pro per) filed a motion for judgment on the pleadings.

REQUEST FOR JUDICIAL NOTICE

Defendant's

request for judicial notice is denied. Defendant uses his 12 exhibits for the truth of their contents, which the Court cannot take judicial notice of and cannot rely on for judgment on the pleadings.

DISCUSSION

A

motion for judgment on the pleadings is the functional equivalent to a general demurrer. (Lance Camper Mfg. Corp. v. Republic Indemnity

Co. of Am. (1996) 44 Cal.App.4th 194, 198.)

Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (Donabedian v. Mercury Ins. Co. (2004)

116 Cal.App.4th 968, 994.) The Court “must

accept as true all material facts properly pleaded, but does not consider conclusions

of law or fact, opinions, speculation, or allegations contrary to law or facts that

are judicially noticed.” (Stevenson Real

Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006)

138 Cal.App.4th 1215, 1219-1220.)

A. The Court Cannot Adjudicate Defendant's

Defense of Illegality at This Stage.

Defendant

argues that Plaintiff violated the Miller-Ayala Athlete's Agent Act. (Motion at p. 7.) Defendant argues that, “due to the fact that all

of Plaintiff's claims are predicated [sic] on the same set of facts, which are unlawful,

all of Plaintiff's claim should be dismissed.”

(Ibid.)

As

established in Plaintiff's Opposition, this is outside the scope of the FAC's allegations,

and Defendant's illegality defense presents factual and legal questions that

are contrary to the pleadings and cannot be resolved at this stage. (Opposition at pp. 7-8.)

The

motion is denied on this ground.

B. Breach of Oral Contract is Sufficiently

Pleaded.

Defendant

argues that the oral contract is vague and uncertain because “Plaintiff has failed

to plead legally recoverable damages in the FAC.” (Motion at pp. 8-9.) Defendant relies on the outside, un-pleaded facts

that “Mr. Doubs has not entered into a new contract with any NFL team entitling

Plaintiff to the amount alleged and projected by Plaintiff in the FAC,” “the fees

from future NFL seasons (2025-2029) have not been earned nor paid,” and “it is entirely possible that the aforementioned players never earn another dollar in the NFL and/or Defendant does not charge agent fees at all and/or the amounts alleged by Plaintiff in the FAC.” (Id. at p. 9.)

Plaintiff

alleges that the parties “entered into an oral agreement pursuant to which Plaintiff would identify, contact, and recruit NFL players for representation by Defendant, and Defendant would pay Plaintiff one-third (33.33%) of the commissions Defendant received from representing each such player.”

(FAC ¶ 38; see FAC ¶¶ 13-16.) Plaintiff

alleges the details and terms of four specific player contracts for which Defendant has failed and refused to pay Plaintiff his agreed-upon share. (FAC ¶¶ 25-32.) These oral contracts are sufficiently alleged.

Defendant

also argues that the alleged oral contract violates that statute of frauds because it cannot be performed within one year. (Motion at p. 8.) As Plaintiff observes, “[t]he alleged agreement contains no term requiring performance for more than one year. . . . Nothing in that arrangement foreclosed Plaintiff from recruiting a player, Defendant securing the representation, receiving a commission, and paying Plaintiff within one year. The FAC expressly alleges that the arrangement was capable of performance within one year and that particular recruitment and payment obligations could be, and were, performed within that year.” (Opposition at p. 9; see FAC ¶ 44.)

The

motion is denied for the first cause of action.

Defendant

also argues that the claim for breach of the covenant of good faith and fair dealing must fail in the absence of a contract. (Motion at p. 11.) This is Defendant’s only argument, and the Court finds that a contract is sufficiently alleged.

The

motion is denied for the third cause of action.

C. Quantum Meruit Is Sufficiently Pleaded.

“To

recover on a claim for the reasonable value of services under a quantum meruit theory, a plaintiff must establish both that he or she was acting pursuant to either an express or implied request for services from the defendant and that the services rendered were intended to and did benefit the defendant.” (Ochs v. PacifiCare of California (2004) 115 Cal.App.4th 782, 794.)

Defendant

argues that “Plaintiff fails to allege a specific benefit that he bestowed upon

Defendant as it applies to the four professional athletes named in the FAC. Moreover, if there was a specific benefit bestowed

upon Plaintiff, Plaintiff fails to establish what that benefit consisted of and

the value of said benefit.” (Motion at p.

10.) Plaintiff alleges that “[a]t Defendant’s

request and with Defendant’s knowledge and encouragement,” he provided recruitment

and referral services, including identifying, contacting, cultivating, and recruiting

NFL players to retain Defendant as their certified agent. (FAC ¶ 47; Opposition at p. 10.) Plaintiff also alleges that his efforts and personal

endorsement resulted in Defendant obtaining representation agreements with four

specific players. (FAC ¶ 48; Opposition at

p. 10.) As a result, Defendant allegedly

received commissions arising from the NFL contracts of players recruited through

Plaintiff’s efforts, totaling approximately \$2,887,005, while Plaintiff received

no compensation for those particular services.

(FAC ¶¶ 49-51; Opposition at p. 10.)

Defendant

also argues that because quantum meruit is a quasi-contractual equitable remedy

that lies only where the plaintiff has no alternative right on an enforceable contract,

this claim cannot be brought along with Plaintiff’s claim for breach of oral contract. (Motion at p. 10.) Plaintiff may plead in the alternative; a claim

for quantum meruit may survive when a claim for breach of written contract fails.

The

motion is denied for the second cause of action.

D. Violation of the UCL Is Sufficiently Pleaded.

California’s

UCL includes any unlawful, unfair, or fraudulent business act or practice and unfair,

deceptive, untrue, or misleading advertising.

(Bus. & Prof. Code, § 17200.)

The UCL embraces “anything that can properly be called a business practice and that at the same time is forbidden by law.”

(Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.

(1999) 20 Cal.4th 163, 180.) “By proscribing

any unlawful business practice, section 17200 borrows violations of other laws and treats them as unlawful practices that the unfair competition law makes independently actionable.” (Ibid.; see Klein

v. Earth Elements, Inc. (1997) 59 Cal.App.4th 965, 969 [“Virtually any law can serve as the predicate for a section 17200 action.”].)

Defendant

argues that Plaintiff does not allege unlawful conduct as a basis for the UCL claim. (Motion at pp. 11-12.) Not so.

Plaintiff has sufficiently alleged a fraudulent scheme by Defendant, and

a private plaintiff has standing when he has lost money or property due to the challenged

conduct. (Kwikset Corp. v. Superior Court

(2011) 51 Cal.4th 310, 322-323; see FAC ¶¶ 76, 80.)

The

motion is denied for the fourth cause of action is denied.

E. Negligence Is Sufficiently Pleaded.

Defendant

argues that “The gravamen of Plaintiff’s= [sic] insufficient pleading is that it

fails to describe the ‘ultimate facts’ of defendant’s conduct that give rise to

alleged liability. Without more detail, defendant

cannot investigate or prepare any defense to Plaintiff’s unsubstantiated claims. Thus, the ‘conclusion of law--ultimate fact’ dichotomy

is important in this case, because Defendant cannot defend himself if Plaintiff

fails to describe facts about Defendant’s conduct and/or inaction that purportedly

caused injury to Plaintiff.” (Motion at p.

12.)

The

FAC clearly and specifically alleges Defendant’s negligent conduct. Defendant failed to maintain accurate records

and accounting of commission payments, made false representations, conducted business

below the standard of care, and disregarded professional obligations. (FAC ¶ 92.)

These allegations are bolstered by earlier, more detailed allegations that

are incorporated by reference. (FAC ¶ 87;

see, e.g., FAC ¶ 76, 81, 88-90.)

The

motion is denied for the fifth cause of action.

Defendant's

motion does not address the sixth cause of action.

CONCLUSION

The

motion for judgment on the pleadings is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 17th day of September 2026

Hon. Thomas D. Long

Judge of the Superior

Court